

Definitions.

3. In this Act, unless the context otherwise requires, the expression "county elector" means a person entitled to vote at the election of a county councillor, under the Local Government Act, 1888, and the expression "parochial elector" means a parochial elector within the meaning of the Local Government Act, 1894.

CHAPTER 30.

An Act to amend the Laws relating to Beer Retailers' and Spirit Grocers' Licences in Ireland.

[30th July 1900.]

WHEREAS it is expedient to amend the law as to the granting of certificates for all licences for the sale of beer and spirits by retail for consumption off the premises :

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Discretion to
licensing
justices to
grant or
refuse cer-
tificates.

1. Notwithstanding anything in any Act the licensing justices shall be at liberty, in their free and unqualified discretion, either to refuse a certificate for any new excise or other licence for sale of beer or spirits by retail, to be consumed off the premises, on any grounds appearing to them sufficient, or to grant the same to such persons as they, in the execution of their statutory powers, and in the exercise of their discretion deem fit and proper, and for the purposes aforesaid shall be at liberty to hear and receive and act upon any objection and any evidence either in support thereof or in aid of the application made or tendered by any resident or owner of property in the parish wherein are situate the house and premises in respect of which such certificate is applied for.

Grant of
certificates.

2. Certificates for any such licences as aforesaid shall, notwithstanding anything in any Act, be granted at annual licensing sessions, and not at any other time.

Exemption
from applica-
tion of
40 & 41 Vict.
c. 4. s. 2.

3. The provision requiring the production of a certificate as to the exclusive occupation of rated premises for a period of three months contained in section two of the Beer Licences Regulation (Ireland) Act, 1877, shall not apply to the case of a transfer of a licence being granted on the death or removal of the person in occupation of the rated premises immediately prior to the granting of such transfer.

Short title,
construction,
and com-
mencement.

4.—(1.) This Act may be cited as the Beer Retailers' and Spirit Grocers' Retail Licences (Ireland) Act, 1900, and may be cited with the Licensing (Ireland) Acts, 1833 to 1886, and shall be construed as one with those Acts.

(2.) This Act shall come into operation on the first day of September one thousand nine hundred.